

DISSENTING OPINION BY M. NYHOLM.

The case before the Court comprises two questions: the question of jurisdiction and the question of the interpretation of Articles 74 and 131 of the Geneva Convention of May 15th, 1922 (the merits).

It has been dealt with in four parts: (1) has objection to the jurisdiction taken by Poland been raised too late? (2) has the objection been abandoned and, arising out of this, has an agreement been created between the Parties as a result of which the Court has jurisdiction? (3) are there other grounds on which jurisdiction can be based, besides the agreement? (4) the merits of the suit.

I.

The judgment rejects the argument to the effect that the objection has been submitted too late to be considered, on the ground that Article 38 of the Rules of Court, when it lays down that an objection to the jurisdiction must be submitted simultaneously with the Counter-Case, only contemplates a case where the Respondent asks a separate judgment upon the objection.

Moreover, the Rules of Court cannot lay down a rule of procedure the effect of which would be to determine the Court's jurisdiction. The Court decides whether it has jurisdiction, but it does not lay down its jurisdiction. The rule, failure to comply with which does not render an objection null and void, is rather of an administrative nature, and its meaning is that the Registry will not receive an objection after the time fixed. It cannot exercise a legal effect for the simple reason that its wording also covers objections *ratione materiæ*; and, as regards such objections, the immutable principle holds good that they are admissible at any stage of the proceedings.

II.

The judgment arrives at the conclusion that the Court has jurisdiction on the basis of the principle that the jurisdiction of the Court is determined by the intention of the Parties (Statute, Article 36); but in the present case this intention has not been sufficiently definitely expressed. According to Article 36, the Court's jurisdiction is based on one of two foundations only, a treaty or a special agreement. The present suit has been brought on the basis of a treaty, the Geneva Convention of May 15th, 1922. But, in point of fact, the judgment does not find in this treaty the basis of the Court's jurisdiction; it resolves the question by saying that the Parties have established the Court's jurisdiction by special "agreement" arrived at between themselves. Nevertheless, when the interpretation of an article of a particular convention is concerned, it would seem natural, in the first place, to look for the rules governing jurisdiction in the convention itself, and not at once to have recourse to some other source, such as the intention of the Parties. In any case, however, it must be further proved that there exists a special agreement concluded in due form, that is to say, constituting *a definite and precise proof of the intention of the Parties*.

It is undeniable that the intention of the Parties, in the form of a special agreement, may determine the Court's jurisdiction.

It would, however, seem impossible to dispense with the formalities which, in accordance with the letter and spirit of the Statute and Rules, must be complied with in the drawing up of a special agreement. The judgment would seem to be wrong when it refers to a precedent in the Mavrommatis case (Judgment No. 5) and states that the Parties established the Court's jurisdiction in regard to a particular point in the course of the proceedings by means of an agreement between them, without any other formality.

In the Mavrommatis case an objection to the jurisdiction was duly argued and overruled. In the course of the subsequent hearings on the merits, the Parties took what was in substance simply a step of procedure, when they asked the

Court also to decide a point which had not previously been specifically referred to. It was, therefore, rather a question of a modification or extension of their submissions. No definite reference seems to have been made to the Court's jurisdiction, and the request calling upon the Court to decide this further point was made without any specific indication of a jurisdiction which was not provided for beforehand. No precedent, therefore, for the omission of the formalities accompanying the submission of a special agreement seems to exist.

Apart, however, from the question of these formalities, it is at all events certain that a special agreement implies a definite intention on the part of the two Parties couched in express terms.

Is there a definite intention in the present case? In the first place, concordant declarations by the two Parties are altogether lacking. Nowhere has Poland *stated* that she accepted the Court's jurisdiction.

Has she, however, in effect accepted it? Again the answer is no. On the contrary, right up to and including her final submissions (the oral hearing of March 15th, 1928), Poland expressly maintained her objection to the jurisdiction.

The judgment, which cannot cite, in support of the theory which it enunciates, either an express declaration or even a tacit acceptance, simply argues that an agreement has been created by the fact that Poland has argued the case on the merits "without making reservations". But reservations are to be found all through the proceedings. Even if, as the judgment says, Poland filed her Counter-Case with submissions on the merits "without raising an objection", the fact remains that in the subsequent proceedings and as soon as the attitude of Germany afforded an opportunity, Poland submitted that the Court had no jurisdiction. At all events, the proceedings before the Court—both written and oral—form a single whole. They comprise two phases and they end with the oral rejoinder, and it is impossible to argue—as does the judgment—that the fact that Poland began her presentation of the case by filing a Counter-Case on the merits constitutes a tacit acceptance. A decisive argument against this contention exists, moreover, in the fact that in the

present case, the objection is an objection *ratione materiae* which can accordingly be raised at any stage. The judgment appears, finally, to adopt the standpoint that implicit (not even tacit) acceptance results from the mere fact that Poland, at a time when the Court had before it submissions regarding *both* the question of jurisdiction *and* the merits, argued the merits. It will suffice to observe that such a contention directly conflicts with the principle of procedure that an objection may be joined to the merits, from which it follows that it is possible to argue both the question of jurisdiction and the merits at the same time.

It must, therefore, be regarded as impossible to establish the existence of a "special agreement" between two Parties, one of which has done nothing but contest the existence of an agreement.

It should also be added that in this case the Parties were even *unable* to conclude an agreement regarding the Court's jurisdiction. The Convention, on the basis of which the suit was brought, was imposed on the Parties by the Conference of Ambassadors, which, amongst other things, prescribed the rules respecting jurisdiction. Germany and Poland, therefore, cannot alter or establish these rules of their own free will.

III.

It is impossible, therefore, in this case to base the Court's jurisdiction upon an "agreement" which does not and cannot exist.

It is, therefore, necessary, and quite natural, to have recourse to an interpretation of the Geneva Convention, on which the suit is based. The judgment only considers it in a somewhat cursory fashion (see pages 26-27). The observations contained in the judgment may be supplemented or replaced by a reference to the Convention which, in point of fact, contains sufficient data for the decision of the question of jurisdiction.

In consulting this instrument, the following should be noted. Article 131, the interpretation of which is sought, is found in Division II of the part of the Convention relating to minorities, namely, *Part III*, which contains Articles 64 to 158. This

Part comprises three divisions: the first from Articles 64 to 72, the second from 73 to 146, and to this second Division is appended a third concerning means of redress (Articles 147 to 158). In referring to the text, which must be consulted in considering the question of jurisdiction, it may be mentioned that Division I is merely a reproduction of the Treaty of Minorities concluded between Poland and the Principal Allied and Associated Powers on June 28th, 1919, whilst Division II is the work of the Commission responsible for drawing up the Convention.

Jurisdictional rules are to be found in Division I in Article 72, and in Division III in Article 147 and the following articles. Article 72 gives the Court jurisdiction in regard to the "foregoing" articles, that is to say, Articles 65 to 72. Article 147 gives the Council of the League of Nations jurisdiction as regards the whole of Part III including both Division I and Division II. A comparison of the foregoing observations with the text will enable one to understand the interpretation which at first sight seems indicated and which has found support, namely, that the Court is competent as far as Article 72 and the Council from Articles 73 to 158. And, since Article 131 is in the part falling within the sphere of the Council, the conclusion seems to be that the Court has no jurisdiction.

But a study of the origin of the Convention and the system adopted by the Commission in drafting it, leads nevertheless to a different result.

After the conclusion of the Treaty of June 28th, 1919, relating to the protection of the rights of minorities, the principles of this Treaty required development and application in detail, and the Conference of Ambassadors decided on October 20th, 1921, that, with a view to the practical application of the principles of the Treaty, the German and Polish Governments should conclude an agreement in order "to put into force the following provisions: . . .", namely, those contained in Articles 1, 2, 7, 8, 9 (paragraphs 1 and 2), 10, 11 and 12 of the Treaty.

The Commission entrusted with the preparation of the Convention could choose between two methods: (1) it could either take as a basis the articles of the Treaty, adding to each article in the form of appendices the articles required.

to expound in detail the principles of the Treaty, or (2) it could combine the principles with the detailed regulations. It adopted the latter method. Division II, in fact, which sets out the principles together with the new detailed regulations, forms a unity. At the same time, the articles of the Treaty were reprinted in a sort of preliminary annex or preamble and were given numbers in the Convention as Articles 65 to 72. The adoption of this method is referred to in the Preamble to Division II which states that the contents of Articles 65 to 72 are only *repeated* in the present section for the purpose of giving a general view.

Division II, therefore, by itself really constitutes the Convention. The principles of the Treaty of 1919 are inserted in it and form a complete whole with the detailed rules to be added by the Commission.

The first conclusion to be drawn from this is that the word "foregoing" loses its significance. Of course, the provision establishing the Court's jurisdiction for Articles 65 to 72 holds good, but the word "foregoing" does not create a barrier depriving the Court of jurisdiction as regards Article 75 and the following articles, that is to say, as regards Division II. This Division, which by itself constitutes the Convention, is subject to the Court's jurisdiction, not only as regards the principles set out therein, but also as regards those articles which develop them and which are merely a detailed application of them, and these latter articles cannot be separately treated, since they form a complete whole together with the principles. It would be inadmissible to extract certain articles and give the Court jurisdiction in respect of them alone. An examination of the articles of Division II shows that every one of them without exception is connected with one of the principles of the Treaty, so that no separation of the rules of jurisdiction is possible. Articles 69 and 131 afford an example of this. The provisions of Article 69 regarding education, as set out under the Treaty of Minorities, are very brief. But in Division II we see what a large number of detailed rules it has been necessary to elaborate in addition to the main principle contained in Article 69.

But Division II, which is subject to the Court's jurisdiction, is also subject to that of the Council.

In this connection, however, it is most important to note that the Council only has jurisdiction in respect of petitions and requests made by *individuals*, whereas the Court's jurisdiction only covers disputes arising between, on the one hand, either the Polish or German Governments, and, on the other, any of the Principal Allied and Associated *Powers* or any other Power, a Member of the Council of the League of Nations. The method of allocating jurisdiction adopted by the Commission in the Convention is suited to practical conditions and is calculated to fulfil this object. The Council's jurisdiction is established with a view to the very numerous disputes arising in connection with the detailed regulations of the Convention (Division II). At the moment, more than 700 cases are pending. The Court should not be called on to deal with them. If nevertheless the jurisdiction of the Court is recognized in regard to Division II, the reason is that the Court only hears cases brought by States and that States are relied upon to exercise their discernment so as not to bring actions in regard to trifling questions, but only where in connection with an article regulating matters of detail questions of legal principle arise or circumstances exist which may involve important consequences. This is the case in the present suit, an apparently unimportant point, namely, the construction to be placed on a declaration entering a child for a school, having had the effect of temporarily interrupting the education of a large number of children.

These considerations clearly show the necessity for action on the part of States and it would be inadmissible to decline to take cognizance of such action; this, therefore, affords ground for maintaining that the Court has jurisdiction in regard to the articles concerning points of detail in Division II.

IV.

The reply which the judgment gives to the question whether a declaration under Article 131 is of a subjective or objective character seems to be drawn up in terms which do not provide a satisfactory solution of the problem. The judgment justly recognizes the weight of the specific text according to which a declaration cannot be either verified or disputed, but

it does not draw the necessary inference. For the operative part of the judgment admits that the declaration is objective in character when it lays down that it must (*doit*) relate to what its author considers to be the actual state of the facts and that there does not exist an unlimited right of choosing the language of the child with regard to whom the declaration is made.

There appears here to be a contradiction in terms. A declaration *which cannot be disputed or verified* is entirely unimpeachable. Such a declaration cannot be limited by rules of law. The requirement according to which the declaration must correspond exactly to the facts is only a pious wish and any limitations as regards its sincerity come solely within a *moral* sphere. Since the declaration cannot be examined and since all objections or disputes in regard to it are excluded, the declarer is not subject to a legal obligation and the declaration must be taken as it stands. Consequently, the maker of the declaration may of his own free will make a declaration without considering whether it corresponds to the actual state of affairs.

Germany, whilst clearly concluding in favour of the right of the declarer to draw up a declaration freely, has in its submissions inserted the words "the parent must declare according to his own conscience and on his own personal responsibility". Since Germany has refused to accept the objective theory, the idea which these words express must be that the maker of the declaration may draw up such declaration as he wishes, true or false, but that, in doing so, he must from a moral point of view reflect on the substance of what his declaration contains.

The principle underlying Article 131 is explainable by the particular state of affairs existing in Upper Silesia; no precise limits exist either as regards nationality or as regards language. Besides the two literary languages: Polish and German, dialects are to be found as in all countries, and even a commonly used dialect differing considerably from the Polish and German languages. The working class ordinarily and in domestic life exclusively speaks this dialect which consequently is the sole means of expression, to the exclusion of German and Polish, for children up to the time when the latter begin

their school studies. Now the declaration only provides for an option between two languages, the German language and the Polish language. In these circumstances and in view of the facts set out above, there are cases in which the declaration, in opting for either German or Polish, cannot correspond to the actual state of facts. Owing to this situation, it further follows that the examination which the League of Nations has ordered cannot result in proving that the language of the child under such examination is not German. The child does not know Polish either. He is only acquainted with the dialect. A request for the entry of a child for a minority school cannot be, generally speaking, considered as having as its aim the denationalization of a child in reality of Polish nationality. The aim may be different, for example, that the parent, realizing that the child will automatically learn Polish, the language of the country, wishes for practical reasons to have him instructed in the German language taught in a minority school. Poland cannot complain of Article 131 nor endeavour to alter it by interpretation, since, in view of the reciprocal nature of the Treaty, the same rules hold good for the German part. It may further be added that the Polish complaint as regards the application of Article 131 mainly turns against Poland's own nationals, namely, against those Poles who send their children to a German school.

As regards adults, the same principle has been applied (Article 74) for the definition of nationality, race and religion. It appears to follow that, having regard to the situation in Upper Silesia, the given solution is based on a rational basis according to the conditions prevailing in the country.

It is of interest to add to the above remarks some information as to what took place in the Committee in which the Convention was elaborated. At its meeting of February 15th, 1922, it was pointed out on behalf of Germany that the principle which had been admitted by the draft proposal was (*translation*) "that each individual was himself to determine whether he belonged to a minority". In order to allow of the right of choosing being exercised subject to no hindrance or influence by the authorities, it was expressly provided that the authorities may not make any verification. That is absolutely necessary precisely because of the particular situation

in Upper Silesia, where the language is not the only criterion which decides whether an individual belongs to a minority. And similarly there is very little object in giving a rigid and objective definition of the idea of "minority" since the linguistic, religious and ethnical divisions cannot be disentangled. A definition of minorities *solely based on the subjective principle* must, for example, allow of an individual counting himself as one of a minority from a religious point of view; on the other hand, it should not be impossible for the same individual to consider himself as belonging to the minority as regards schools but to the majority in other spheres, for example, as regards associations. The German Government considers that its proposals take this particular situation into account.

No objection was made in the course of the meeting against the above-mentioned principle.

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The declaration being thus unimpeachable, it now remains to consider the problem which in effect is the one in which the Parties are interested. How far can the declaration be enquired into? Article 131 prohibits any dispute or verification by the "school authorities". There is no reason for restricting the meaning of the words "school authorities" to the subordinate authorities of each school. The words "school authorities" must comprise all the organs of the State which deal with school matters from the lowest to the highest.

As regards authorities not being specifically school authorities, one cannot within the meaning of the Convention deduce a right of examination.

Any enquiry to verify the language implies a hindrance contrary to the right of free choice.

Nevertheless, it might be objected that the authorities of a State could, from an administrative point of view, examine, not whether the declaration is in conformity with the true state of the facts, but whether there exists in reality a *declaration* within the meaning of the article, namely, for example, whether the person who had made the declaration had the necessary authority for so doing.

It cannot be denied in this respect that abuses might arise. That is not contested by Germany. Poland is entitled to intervene in such cases, but good faith in the carrying out of the Convention requires that such special cases should not furnish grounds for general measures contrary to the substance of Article 131. But there is reason to have recourse to the good faith of the two States, having regard to the fact that the stipulations of the Convention are reciprocally applicable both to the Polish part and to the German part, and that consequently they may, should the occasion arise, be put into force against one or the other State.

(Signed) D. G. NYHOLM.
